

25STCV07620 25STCV07620

County: los-angeles

Division: Civil Law and Motion

Department: 507

Hearing date: 2026-07-29

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Case Number: 25STCV07620 Hearing Date: July 29, 2026 Dept: 507

Tentative Ruling

Judge Rolf M. Treu,

Department 507

HEARING DATE: July 29, 2026 TRIAL

DATE: Not Set

CASE: Mission Valley Bank v. Rey Diamond

Logistics Inc.

CASE NO.: 25STCV07620

REQUEST

FOR DEFAULT JUDGMENT

MOVING PARTY: Plaintiff Mission Valley Bank

RESPONDING PARTY: None

CASE

HISTORY:

3/17/2025:

Complaint filed.

STATEMENT

OF MATERIAL FACTS AND/OR PROCEEDINGS:

This is an action for breach of contract. Plaintiff alleges that it entered into Business Manager Agreements with Miranda Logistics Enterprises (Miranda) and Grit & Gravel, Inc. (G&G), wherein they assigned and sold accounts receivable to Plaintiff.

Plaintiff also alleges that Miranda and G&G's accounts receivable include obligations due and owing from Defendant Rey Diamond Logistics Inc. Plaintiff alleges it has the right to collect on behalf of Miranda and G&G pursuant to the Business Manager Agreements.

Plaintiff alleges that Defendant indebted to Miranda in the amount of \$977,106.75.

Plaintiff alleges that Defendant indebted to G&G in the amount of \$519,921.89.

Plaintiff requests default judgment against Defendant Rey Diamond Logistics Inc.

TENTATIVE RULING:

Plaintiff's request for default judgment is DENIED without prejudice.

Plaintiff to give notice, unless waived.

DISCUSSION:

Plaintiff seeks \$1,497,028.64 in demand of the complaint, \$175,539.92 in interest, and \$216.97 in costs.

The request is DENIED without prejudice for the following deficiencies:

First, appears the proof of service filed on 12/9/25 is

defective. The proof of service of the summons and complaint indicates that service was effected by substitute service on the registered agent, Alberto Hernandez. However, Item 5(b) states that the documents were left at the home, with Melissa Espinoza (occupant / adm assistant). But the home is not an authorized place of service on a corporation.

CCP section 415.20(a) states: "In lieu of personal delivery of a copy of the summons and complaint to the person to be served as specified in Section 416.10, 416.20, 416.30, 416.40, or 416.50, a summons may be served by leaving a copy of the summons and complaint during usual office hours in the person's office or, if no physical address is known, at the person's usual mailing address, other than a United States Postal Service post office box, with the person who is apparently in charge thereof, and by thereafter mailing a copy of the summons and complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left."

Under CCP section 415.20 substitute service at a dwelling house applies to individuals, not corporate entities.

As a result, entry of default is void.

Second, the conclusory declaration of Frank Abraham is insufficient to show the amount currently owed by Defendant. Abraham failed to declare how the amounts were calculated, failed to declare whether Defendant made any payments, and/or failed to show whether Defendant's payments (if any) were credited to the amount owed.

Lastly, the attachments to the declaration of Abraham are not authenticated and thus, inadmissible.

IT IS SO ORDERED.

Dated: July 29, 2026 _____

Rolf M. Treu

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.